

**BOARD OF ADA COUNTY COMMISSIONERS
MINUTES OF THE PUBLIC HEARING
WEDNESDAY, DECEMBER 10, 2025
6:00 P.M.**

The Board of Ada County Commissioners met this date in the Ada County Public Hearing Room of the Ada County Courthouse Complex. Staff members present: Richard Beck, Kristy Inselman, Brent Danielson, Stacey DuPuis, Doug Holtom, Michaela Owens, Amelia Haynes, Brianna Bustos and Elias Sandoval-Clarimon, Development Services; and Robert Berry and Matthew Kline, Prosecuting Attorney's Office. Minutes Recorder: Matt Reed.

I. IN THE MATTER OF CALL TO ORDER:

Commissioner Rod Beck called the meeting to order at 6:04 p.m.

II. IN THE MATTER OF ROLL CALL:

Commissioners Rod Beck and Tom Dayley were present. Commissioner Ryan Davidson joined the meeting at 6:05 p.m.

III. IN THE MATTER OF CHANGES TO THE AGENDA:

There were no changes to the agenda.

IV. IN THE MATTER OF NEW BUSINESS:

[This was heard after Application No. 201201115-S-TE, BRECKON LAND DESIGN.]

1. **202501861-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES:** Comprehensive Plan Map and Text Amendment and Zoning Ordinance Text Amendment to Title 9 of the Ada County Code to reestablish the City of Eagle Area of Impact and update the City of Eagle Comprehensive Plan and Future Land Use Map, dated November 14, 2017 (Resolution No. 3155 and Ordinance No. 1006). Stacey DuPuis, Community and Regional Planner, at either (208) 287-7944 or sdupuis@adacounty.id.gov.

R. Beck opened the public hearing.

S. DuPuis presented the Staff report.

Mayor Brad Pike, City of Eagle, testified in support of the application.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NO. 202501861-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND TESTIMONY GIVEN. T. DAYLEY SECONDED. R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

2. **202501859-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES:** Comprehensive Plan Map and Text Amendment and Zoning Ordinance Text Amendment to Title 9 of the Ada County Code to reestablish the City of Star Area of Impact and update the City of Star Comprehensive Plan and Future Land Use Map, adopted on June 7, 2022 (Resolution No. 3156 and Ordinance No. 1007). Stacey DuPuis, Community and Regional Planner, at either (208) 287-7944 or sdupuis@adacounty.id.gov.

R. Beck opened the public hearing.

S. DuPuis presented the Staff report.

Mayor Trevor Chadwick, City of Star, gave testimony in favor of the application.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO APPROVE APPLICATION NO. 202501859-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

3. **202501858-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES:** Comprehensive Plan Map and Text Amendment and Zoning Ordinance Text Amendment to Title 9 of the Ada County Code to reestablish the City of Meridian Area of Impact and update the City of Meridian Comprehensive Plan and Future Land Use Map, adopted on January 15, 2025 (Resolution No. 3157 and Ordinance No. 1008). Stacey DuPuis, Community and Regional Planner, at either (208) 287-7944 or sdupuis@adacounty.id.gov.

R. Beck opened the public hearing.

S. DuPuis presented the Staff report.

Caleb Hood, City of Meridian, gave testimony supporting the application.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NO. 202501858-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND TESTIMONY GIVEN. T. DAYLEY SECONDED. R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

4. **202501857-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES:** Comprehensive Plan Map and Text Amendment and Zoning Ordinance Text Amendment to Title 9 of the Ada County Code to reestablish the City of Boise Area of Impact and update the City of Boise Comprehensive Plan and Future Land Use Map, adopted on July 10, 2024. Stacey DuPuis, Community and Regional Planner, at either (208) 287-7944 or sdupuis@adacounty.id.gov.

R. Beck opened the public hearing.

S. DuPuis presented the Staff report.

Carol Vidales testified in opposition to the application.

Carlos Vidales presented testimony and a PowerPoint in opposition to the application, expressing concerns about sewer services and requesting that lifting the City of Boise's sewer moratorium be added as a condition of approval.

Tucker Johnson gave testimony regarding development and sewer service concerns and asked for annual review as an additional condition of approval.

Nick Nettles testified in opposition to the application, repeating previous concerns raised and regarding sewer connections.

Scott Gibson echoed prior testimony in opposition to the application.

Doug Miller testified he would support the application with the additional condition of approval removing the sewer moratorium.

Colin Nash gave testimony in support of the application.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO TABLE APPLICATION NO. 202501857-ZOA-CPA, ADA COUNTY DEVELOPMENT SERVICES, TO THE DECEMBER 30, 2025, OPEN BUSINESS MEETING. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

5. **202501512-S & 200600071-DA-DM, ROCKY MOUNTAIN COMPANIES:** Preliminary Plat for Hazelton Commercial Subdivision which includes twelve (12) buildable lots for commercial uses. Also included is a Development Agreement Modification (Project No. 200600071-DA-DM) (Agreement No. 7641-7-25) to address signage for future development and prohibit multi-family dwellings. The property is generally located at 6381 S. Five Mile Road and contains 11.4 acres in the Community Commercial (C2) and Medium High Density Residential (R8) Districts; Section 3, T.2N, R.1E. Doug Holtom, Associate Planner, at either (208) 287-7905 or dholtom@adacounty.id.gov.

R. Beck opened the public hearing.

D. Holtom presented the Staff report.

Applicant presented testimony and a PowerPoint supporting the application.

Carol Vidales gave testimony in favor of the application.

Carlos Vidales testified in support of the application.

Nick Nettles reiterated previous testimony in favor of the application.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO APPROVE APPLICATION NO. 202501512-S & 200600071-DA-DM, ROCKY MOUNTAIN COMPANIES, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT; AND TABLE IT TO THE DECEMBER 23, 2025, OPEN BUSINESS MEETING FOR FINALIZATION OF THE DEVELOPMENT AGREEMENT. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

6. **202501403-ZC-DA-S-PR-V, DAVID EVANS AND ASSOCIATES INC:** Zone Change from the Rural Preservation (RP) District to the Rural Residential (RR) District (Ordinance No. 1009), a Preliminary Plat for the Fiddleneck Ridge Subdivision, which consists of four (4) buildable lots, a Development Agreement (Agreement No. 31154), and Private Road. Also included is a Variance to allow a Private Road to intersect another Private Road. The property is located at 15350 N Broken Horn Rd and contains 40.8 acres; Section 30, T.5N, R.2E. Doug Holtom, Associate Planner, at either (208) 287-7905 or dholtom@adacounty.id.gov.

R. Beck opened the public hearing.

D. Holtom presented the Staff report.

Applicant testified in support of the application and requested waiving the road paving condition of approval.

Allison Gilbreath gave testimony regarding road maintenance.

Applicant and Devon McDonald gave rebuttal testimony.

The parties discussed grading and paving requirements.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NO. 202501403-ZC-DA-S-PR-V, DAVID EVANS AND ASSOCIATES INC, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT; AND TABLE IT TO THE DECEMBER 23, 2025, OPEN BUSINESS MEETING FOR FINALIZATION OF THE DEVELOPMENT AGREEMENT. T. DAYLEY SECONDED. R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

7. **202501571-CU-MSP-V, DESRI:** Conditional Use and Master Site Plan for a Centralized Power Facility (Solar Farm), Electric Transmission Line, Battery Energy Storage System and Substation. Also included is a Variance to maximum site coverage. The property is generally located north of Kuna Mora Rd and east of S Cole Rd and contains approximately 2,600 acres in the Rural Preservation (RP) District; Sections 27, 28, 29, 30, 31, 32, 33, 34, 35, T.2N, R.2E and Section 3, T.1N, R.2E. Michaela Owens, Associate Planner, at either (208) 287-7924 or mowens@adacounty.id.gov.

R. Beck opened the public hearing.

M. Owens presented the Staff report.

Caitlin Clancy, representing Applicant, presented testimony and a PowerPoint supporting the application.

Adam Evan testified in opposition to the application, expressing fire hazard concerns.

Erin Evan gave testimony in opposition regarding environmental concerns, setback distances, construction dust, noise and traffic.

Jen Odell reiterated previous testimony.

Chris Maloney testified in opposition to the application regarding solar farm maintenance.

Carol Vidales gave opposing testimony echoing concerns for fire safety.

Hannah Berry reiterated prior testimony.

C. Clancy, Meghan Knudsen and Paul Brown gave rebuttal testimony addressing concerns raised.

The parties discussed fire suppression plans and decommissioning requirements.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO APPROVE APPLICATION NO. 202501571-CU-MSP-V, DESRI, WITH REVISED CONDITIONS OF APPROVAL TO CLARIFY DECOMMISSIONING FINANCIAL PLAN, FIRE PLAN AND SETBACKS AS DISCUSSED; AND TABLE IT TO THE DECEMBER 30, 2025, OPEN BUSINESS MEETING FOR REVISED FINDINGS OF FACT AND CONCLUSIONS OF LAW. R. DAVIDSON SECONDED.

DISCUSSION: THE BOARD DISCUSSED THE ISSUES RAISED AND THEIR MOTION.

ACTION: T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

8. **202501791-CU-MSP-V, DON CURRY:** Conditional Use and Master Site Plan for a contractor's yard, along with a Variance to take access from a private road. The property is located at 5701 W Bristlecone Ln and contains 10 acres in the Rural Residential (RR) District; Section 9, T.2N, R.1W. Amelia Haynes, Associate Planner, at either (208) 287-5715 or ahaynes@adacounty.id.gov.

R. Beck opened the public hearing.

A. Haynes presented the Staff report.

Applicant presented testimony supporting the application.

Robert Pingatore gave testimony clarifying street names.

Alan Barrow testified in opposition to the application.

Applicant gave rebuttal testimony.

R. Beck closed the public hearing.

ACTION: R. DAVIDSON MOVED TO APPROVE APPLICATION NO. 202501791-CU-MSP-V, DON CURRY, BASED ON THE FINDINGS OF FACT AND CONCLUSIONS OF LAW CONTAINED IN THE STAFF REPORT AND THE TESTIMONY PROVIDED. T. DAYLEY SECONDED.

DISCUSSION: THE BOARD DISCUSSED THEIR DECISION.

ACTION: R. DAVIDSON, AYE, T. DAYLEY, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

9. **202400314-CU-M, KIRSCHNER HOLDINGS LLC:** The applicant wants to modify Condition No. 15 of Project No. 202400314 CU-MSP. Condition No. 15 limits the northern contractor's yard on the property to 50 total vehicles. The applicant wants to increase the number of allowed vehicles or trailers to 280 for the northern contractor's yard. The property is located at 16000 S Vista Ave and contains approximately 38 acres in the Rural Preservation (RP) District; Section 3, T.1N, R.2E. Brent Danielson, Senior Planner, at either (208) 287-7913 or bdanielson@adacounty.id.gov.

R. Beck opened the public hearing.

B. Danielson presented the Staff report.

Craig Kulchak, representing Applicant, presented testimony and a PowerPoint in support of the application.

Pam Kirschner gave testimony supporting the application.

Adam Evan testified in opposition to the application, explaining concerns about preserving the rural residential character of the area.

Erin Evan gave testimony in opposition, reiterating previous concerns.

Amy Niendorf testified in opposition, echoing previous testimony.

Jen Odell testified in opposition to the application, agreeing with earlier testimony.

Hannah Berry gave opposing testimony, repeating prior concerns.

Chris Maloney testified in opposition, reiterating earlier testimony.

C. Kulchak, P. Kirschner and Applicant gave rebuttal testimony addressing concerns raised.

R. Beck closed the public hearing.

ACTION: T. DAYLEY MOVED TO TABLE APPLICATION NO. 202400314-CU-M, KIRSCHNER HOLDINGS LLC, TO JANUARY 6, 2026, TO OBTAIN LEGAL ADVICE. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

10. **201201115-S-TE, BRECKON LAND DESIGN:** Hearing Level Time Extension for Phases 7-9 of the Preliminary Plat of Winters Run Subdivision. The property is generally located at the northwest corner of Lake Hazel Rd and Maple Grove Rd and contains 17.63 acres in the Community Commercial (C2) and Medium Density Residential (R6) Districts; Section 35, T.3N, R.1E. Brent Danielson, Senior Planner, at either (208) 287-7913 or bdanielson@adacounty.id.gov.

ACTION: T. DAYLEY MOVED TO TABLE APPLICATION NO. 201201115-S-TE, BRECKON LAND DESIGN, TO THE JANUARY 14, 2026, PUBLIC HEARING. R. DAVIDSON SECONDED. T. DAYLEY, AYE, R. DAVIDSON, AYE, AND R. BECK, AYE. THE MOTION CARRIED UNANIMOUSLY.

[Application No. 202501861-ZOA-CPA was heard next.]

V. IN THE MATTER OF ADJOURNMENT:

There being no further business to come before the Board on this date, the meeting was adjourned at 11:24 p.m.



Rod Beck, Chair

ATTEST:



Trent Tripple, Ada County Clerk